

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

WORLDWIDE NEXUS LOGISTICS, LLC, *Complainant*

v.

WALLENIUS WILHELMSEN, *Respondent*.

DOCKET NO. 25-15

Served: April 20, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ADDRESSING FILING DEFICIENCIES AND EXTENDING SCHEDULE

This matter came on for consideration, *sua sponte*, to address deficiencies in Complainant's Brief, Proposed Findings of Fact, and Appendix with exhibits, which in addition to being submitted late on April 14, 2026, does not comply with the requirements set forth in the Initial Order served August 5, 2025. For the following reasons, Complainant is directed to submit corrected versions of its brief, proposed findings of fact, and appendix with exhibits to correct these deficiencies. Accordingly, the scheduling order for both parties is extended as set forth below.

The Initial Order contains, *inter alia*, directions to the parties setting forth the requirements applicable to filing papers and pleadings in order to ensure uniform formatting and a well organized record that promotes judicial efficiency. With respect to the requirement for each party to file an Appendix with Exhibits, the Order provide for sequential Bates stamp numbering of each page utilizing the combination of a unique prefix for each party followed by sequential numbers starting with 1. The order suggests that the prefix CX be used for the Complainant and RX for Respondent. It also provides that numbers are not to be repeated if multiple appendix files are submitted. Additionally, parties are directed to reference exhibits by Bates number in their briefing when citing to the record, and to refer to documents filed in opposing party's appendix rather than submitting a duplicate document in their own appendix. (Initial Order, at ¶¶ 25, 26, 28, and 29.)

Pursuant to the Order Granting Joint Motion to Extend Schedule January 21, 2026, Complainant was required to file its brief, proposed findings of fact, and appendix on March 13, 2026. (Dkt. 13.) It did not do so. Rather, on that date Complainant submitted its brief, proposed findings of fact, and appendix without any exhibits. By email to counsel dated April 13, 2026, the Office of the Secretary directed Complainant to file its complete appendix including all exhibits.

On April 14, 2026, Complainant filed Complainant's Brief (Dkt. 14) and Proposed Findings of Fact with Appendix A-C (Dkt. 15.) The certificate of service accompanying the brief states that Complainant's Brief, Proposed Findings of Fact, and Appendix Index were served on counsel for Respondent, but does not state that the Appendix exhibits were served.

Appendix A consists of five PDF files marked Part 1 of 5 through Part 5 of 5, none of which has sequential Bates stamp numbers with a unique prefix. Exhibit B consists of one PDF file marked WWO 0001 – WWO 0510. Exhibit C consist of one PDF file without sequential Bates stamp numbers containing a unique prefix. These exhibits do not comply with the requirement in the initial order to mark all exhibits with sequential Bates Stamp numbers using a uniform prefix unique to Complainant. For this reason, Complainant's brief and proposed findings of fact do not reference exhibits by sequential Bates stamp number with a unique prefix when citing to the record.

The deficiency in Complainant's filings create a confusing record that makes it cumbersome and inefficient for Respondent to file its responsive filings and for me to review the record in order to render a decision. It also increases the likelihood that unnecessary duplicate exhibits will be filed.

For this reason, Complainant is directed to file corrected filings, including the brief, proposed findings of fact, and appendix with exhibits. The exhibits must be marked using sequential Bates Stamp numbers with a unique prefix, preferably CX, followed by numbers starting with 1 and with none repeated. Complainant is directed to serve copies of all corrected documents on Respondent, including all exhibits in addition to the appendix index.

In order to allow Complainant sufficient time to prepare and submit corrected filings and for Respondent to be able to reference Complainant's exhibits in its own submission, the scheduling order will be extended.

The parties are **ORDERED** to comply with the following schedule.

May 4, 2026	Complainant's corrected brief, proposed findings of fact, and appendix with exhibits
June 1, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix with exhibits
June 15, 2026	Complainant's reply brief and responses to proposed findings of fact

MARY A.
HERVEY -S

Mary Apostolakos Hervey
Administrative Law Judge

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